

MAGRINI VS. COUNTY OF SHASTA

CASE NUMBER: 25CV-0208798

Tentative Ruling on Demurrer: Defendant demurs to the Second Amended Complaint (“SAC”) pursuant to CCP § 430.10(e) and CRC 3.1320 on the grounds that the SAC does not state facts sufficient to constitute a cause of action. Specifically, Defendant demurs to the Third Cause of Action for Violation of the Tom Bane Civil Rights Act (California Civil Code section 52.1). Plaintiff opposes the Demurrer.

Meet and Confer: CCP § 430.41 requires the demurring party to “meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The Declaration of Chelsea Avent does not indicate compliance with the meet and confer requirements. Counsel sent a letter but did not meet and confer in person or by telephone. The Court elects to reach the merits despite this deficiency.

Merits: A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

Defendant demurs to Plaintiff’s Third Cause of Action for violation of the Tom Bane Civil Rights Act (California Civil Code section 52.1) (“Bane Act”). To state a claim for violation of the Bane Act, a plaintiff must allege: “(1) intentional interference or attempted interference with a state or federal constitutional or legal right, and (2) the interference or attempted interference was by threats, intimidation or coercion.” (*Allen v. City of Sacramento* (2015) 234 Cal.App.4th 41, 67 [183 Cal. Rptr. 3d 654].) *Wiley v. Kern High School Dist.* (2024) 107 Cal. App. 5th 765, 774.

The Second Amended Complaint alleges several bases for the Bane Act claim. The SAC includes detailed factual allegations of intentional interference with Plaintiff’s rights by threats, intimidation, or coercion. These impeded rights include his right to report misconduct directed at him and employees who reported to him, his right to free speech, and his right to due process. Specifically, the SAC alleges that (1) County Board member Crye stalked Magrini’s wife at her workplace and stalked Magrini and his granddaughter at her school; (2) County supervisors cornered Magrini in his office and screamed at him to deter further reports of unlawful workplace; and (3) while Magrini was on medical leave, the County ordered him under threat of discipline or termination to surrender his desk key, then searched his personal belongings without permitting him to be present, and ultimately terminated him through a sham meeting conducted without notice or opportunity to be heard. The Court finds that the Third Cause of Action is adequately pled.

The Demurrer is **OVERRULED**. No proposed order was lodged as required by Local Rule 5.17(D). Defendant shall submit the proposed order.